

**PLANNING &
DEVELOPMENT**

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

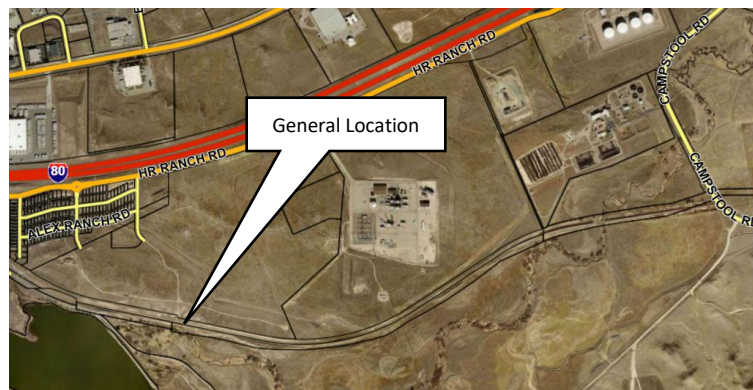
To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Jeanie Anderson-Shrednik
Subject: Grant of perpetual right-of-way and utility easement and temporary easement to Microsoft Corporation for underground fiber lines.
Date: February 9, 2026

Background:

The item for consideration is a Grant of Easement. The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|-------------------|
| • Introduction and referral | February 9, 2026 |
| • Finance Committee | February 18, 2026 |
| • Final consideration | February 23, 2026 |

The proposed easement is generally located along the former CB & Q rail corridor southeast of the JL Ranch subdivision.



The easement would grant Microsoft Corporation a permanent right-of-way on City of Cheyenne property southeast of the JL Ranch subdivision to install, operate, and maintain underground fiber optic lines within a 10-foot-wide corridor of approximately 1,000 square feet, along with a temporary construction easement extending 10 feet on each side for installation. The easement would also allow Microsoft to access the site for construction, maintenance, upgrades, and removal of its facilities and, with City approval, to share the conduit with other telecommunications providers. Microsoft would be responsible for all related costs, burying the lines at least 48 inches deep, repairing any damage, restoring disturbed areas, and complying with applicable laws. The City would retain the right to use the area so long as it does not interfere with the facilities and may require removal of the lines if they are unused for two consecutive years.

Attachments:

1. Grant of Easement Document

UTILITY EASEMENT

THIS EASEMENT is made and entered into this _____ day of _____, 2026, by and between **the City of Cheyenne, Wyoming ("City")**, a **Municipal Corporation**, its **successors and assigns**, (hereinafter "**Grantor**"), and **Microsoft Corporation**, having an address of One Microsoft Way, Redmond, Washington 98052-6399 (hereinafter "**Grantee**").

Grantor, in consideration of the sum of Ten Dollars (\$10.00) and other valuable consideration, the receipt of which is hereby acknowledged, hereby grants, bargains, sells and conveys to Grantee, its lessees, licensees, successors and assigns, a perpetual right-of-way and utility easement for an UNDERGROUND FIBER LINE(S), collectively "**Facilities**"; and all appurtenances and appliances necessary in connection therewith, including but not limited to any and all necessary attachments and appurtenances for said Facilities;

TOGETHER WITH the power to extend to any communications company, or "dry" utilities provider, the right to use any trench or conduit placed pursuant to the provisions hereof, provided that (a) any such extension of use must be with the prior written consent of Grantor, which consent shall not be unreasonably withheld, and (b) such use shall be solely for underground fiber optic communications. Grantor shall not withhold consent to use by a common carrier of telecommunications service provided that such carrier's or service's proposed use: (i) is consistent with the scope of this Easement; (ii) is limited to underground fiber optic communications; (iii) does not materially interfere with the City's present or future use of the property; and (iv) complies with all applicable City ordinances and permitting processes.

AND TOGETHER WITH the right, privilege and perpetual right-of-way to survey, construct, operate, patrol, inspect, maintain, alter, repair, rebuild, upgrade, up-rate, enhance, replace, and remove said facilities, under and over said lands, now or at any future time, and the right of ingress and egress to and from the Facilities. The location, width, and boundaries of the Easement are more particularly shown and described on Exhibit A, which is attached hereto and incorporated herein by this reference and shall govern in the event of any conflict or inconsistency with the textual description contained in this Agreement. Said Easement consists of a 10-foot-wide utility easement being more particularly described as:

Legal Description of Easement Area: The following are centerline descriptions for a fiber line easement route located in a portion of Section 2, Township 13 North, Range 66 West of the 6th Principal Meridian. The sidelines of the easement area lie five (5) feet on each side of the centerline. The sidelines of the temporary construction license lie fifteen (15) feet on each side of the centerline.

Parcel 1:

COMMENCING AT THE EAST QUARTER CORNER OF SAID SECTION 2;
THENCE S32°30'10"W A DISTANCE OF 1757.72 FEET TO A POINT ON
THE SOUTH BOUNDARY OF BRONCO SUBDIVISION AND THE POINT
OF BEGINNING.

THENCE S10°28'04"W A DISTANCE OF 100.41 FEET TO A POINT ON THE
SOUTH BOUNDARY OF JL RANCH AND THE POINT OF TERMINUS.

THE SIDELINES OF SAID EASEMENT AREA SHALL BE LENGTHENED OR FORSHORTENED TO MEET AT SAID SOUTHERLY BOUNDARIES.

SAID EASEMENT AREA CONTAINS 1004.12 SQUARE FEET AND HAS A CENTERLINE LENGTH OF 100.41 FEET AND IS SUBJECT TO EASEMENTS OF RECORD.

Parcel 2:

COMMENCING AT THE EAST QUARTER CORNER OF SAID SECTION 2; THENCE S31°20'12"W A DISTANCE OF 1851.18 FEET TO A POINT ON THE SOUTH BOUNDARY OF JL RANCH AND THE POINT OF BEGINNING.

THENCE S10°28'04"W A DISTANCE OF 100.17 FEET TO A POINT ON THE SOUTH BOUNDARY OF THE ABANDONED BURLINGTON NORTHERN RAILROAD RIGHT OF WAY AS SHOWN ON ANNEXATION MAP FOR B&L LAND COMPANY RECORDED AT BOOK 1983 PG 300 OF THE LARAMIE COUNTY RECORDS AND THE POINT OF TERMINUS.

THE SIDELINES OF SAID EASEMENT AREA SHALL BE LENGTHENED OR FOR SHORTENED TO MEET AT SAID SOUTHERLY BOUNDARIES.

SAID EASEMENT AREA CONTAINS 1001.68 SQUARE FEET AND HAS A CENTERLINE LENGTH OF 100.17 FEET AND IS SUBJECT TO EASEMENTS OF RECORD.

Said Easement containing approximately 1,000 square feet more or less.

In addition to the permanent easement described above the City agrees to allow a temporary easement, 10-foot on either side of the permanent easement for installation of Grantee facilities.

AS A FURTHER CONSIDERATION OF THIS AGREEMENT, the parties hereto agree as follows:

1. Grantee has selected the route for said Facilities over and through said premises, and shall be responsible for all construction, reconstruction, operation, installation, use, repair, replacement, upkeep, monitoring, and maintenance of the Facilities;
2. That Grantee shall bury all Facilities a minimum of 48 inches below existing ground to allow for construction of future Greenway trail;
3. That Grantee shall replace or rebuild any and all unusual or excessive damage to the easement property, and/or pay for any damage caused which shall be occasioned by the construction, operation and maintenance of said Facilities under and through the above-described premises;
4. That Grantee's activities are subject to, and Grantee shall comply with, all applicable federal, state, and local laws, ordinances, and permitting requirements, including but not limited to environmental, safety, and land use regulations;

5. That Grantee shall, within thirty (30) days of completion of any installation, maintenance, or removal activities, restore the surface of the Permanent Easement and any affected improvements to a condition equal to or better than that which existed prior to commencement of such activities, subject to City inspection and approval. Grantee shall promptly correct any deficiencies identified by the City;

6. Grantee shall, to the fullest extent permitted by law, defend, indemnify, and hold harmless the City, its officers, employees, agents, and assigns from and against any and all claims, liabilities, damages, losses, costs, and expenses (including attorneys' fees) arising out of or related to the exercise of rights under this easement or the presence, installation, construction, operation, maintenance, repair, or removal of Grantee's Facilities, except to the extent caused by the gross negligence or willful misconduct of the City.

7. If any stakeholder requires relocation of the Facilities (including, but not limited to Grantor, Grantee, Utilities Franchisor, or Right-of-Way and Greenway Administrator), Grantee agrees to relocate the Facilities at its own expense, provided that the Grantor supplies a suitable alternate location for such Facilities and grants the necessary easement rights at the new location upon the same terms and conditions herein provided.

8. It is further understood and agreed that this agreement shall run with the land and shall inure to the benefit of, and be binding upon the legal representatives, heirs, devisees, successors and assigns of the respective parties, and by the execution and acknowledgment thereof, Grantors jointly and severally waive their homestead rights to the above-described lands so far as the same may be affected by this agreement.

9. The City shall retain the full right to use and enjoy the easement area for any purpose not unreasonably interfering with the operation or maintenance of the Grantee's Facilities. No new buildings may be constructed within the easement without Grantee's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed. In the event the Grantee and the City disagree as to whether a proposed use will cause interference, the parties shall engage in good faith efforts to resolve such dispute, and if unresolved, may pursue appropriate legal action to enforce or otherwise interpret the terms of this agreement.

10. Abandonment. In the event the Facilities are abandoned, discontinued, or not used for a continuous period of twenty-four (24) months, the City may, upon written notice to Grantee, require Grantee to remove the Facilities and restore the easement area at Grantee's sole cost. If Grantee fails to do so within a reasonable time specified by the City, the City may perform such work and recover its costs from Grantee. Upon abandonment and removal, this Easement shall automatically terminate as to the abandoned Facilities.

11. Governmental Immunity. The City does not waive, and expressly reserves, all rights, claims, immunities, and defenses available to it under the Wyoming Governmental Claims Act, W.S. § 1-39-101 et seq., and any other applicable law. Nothing in this Agreement shall be construed as a waiver of the City's governmental immunity or sovereign immunity,

except to the limited extent necessary to allow the parties to enforce the express terms of this Agreement as provided by law.

12. Grantor hereby represents, warrants and covenants that Grantor has sufficient legal authority and interest in the above-described land, subject to existing liens and easements of record and has all rights to grant this easement.

IN WITNESS WHEREOF, this instrument has been executed and effective on the day and year first above written.

Signed and delivered in the presence of:

GRANTOR:

GRANTEE:

THE CITY OF CHEYENNE, WYOMING

MICROSOFT CORPORATION

PRINT NAME

PRINT NAME

TITLE

TITLE

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SEE FOLLOWING PAGE(S) FOR ACKNOWLEDGEMENT

ACKNOWLEDGEMENTS

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

On this _____ day of _____, 2026, in and for the state and county aforesaid, before me, a Notary Public, personally came _____ of the City of Cheyenne, and executed the foregoing instrument for the purposes therein contained, by signing his/her name as such officer and as the free and voluntary act and deed of said municipal corporation.

WITNESS my hand and official seal in the state and county aforesaid, this _____ day of _____, 2026.

Notary Public, Laramie County, Wyoming

(SEAL)

My Commission Expires: _____

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

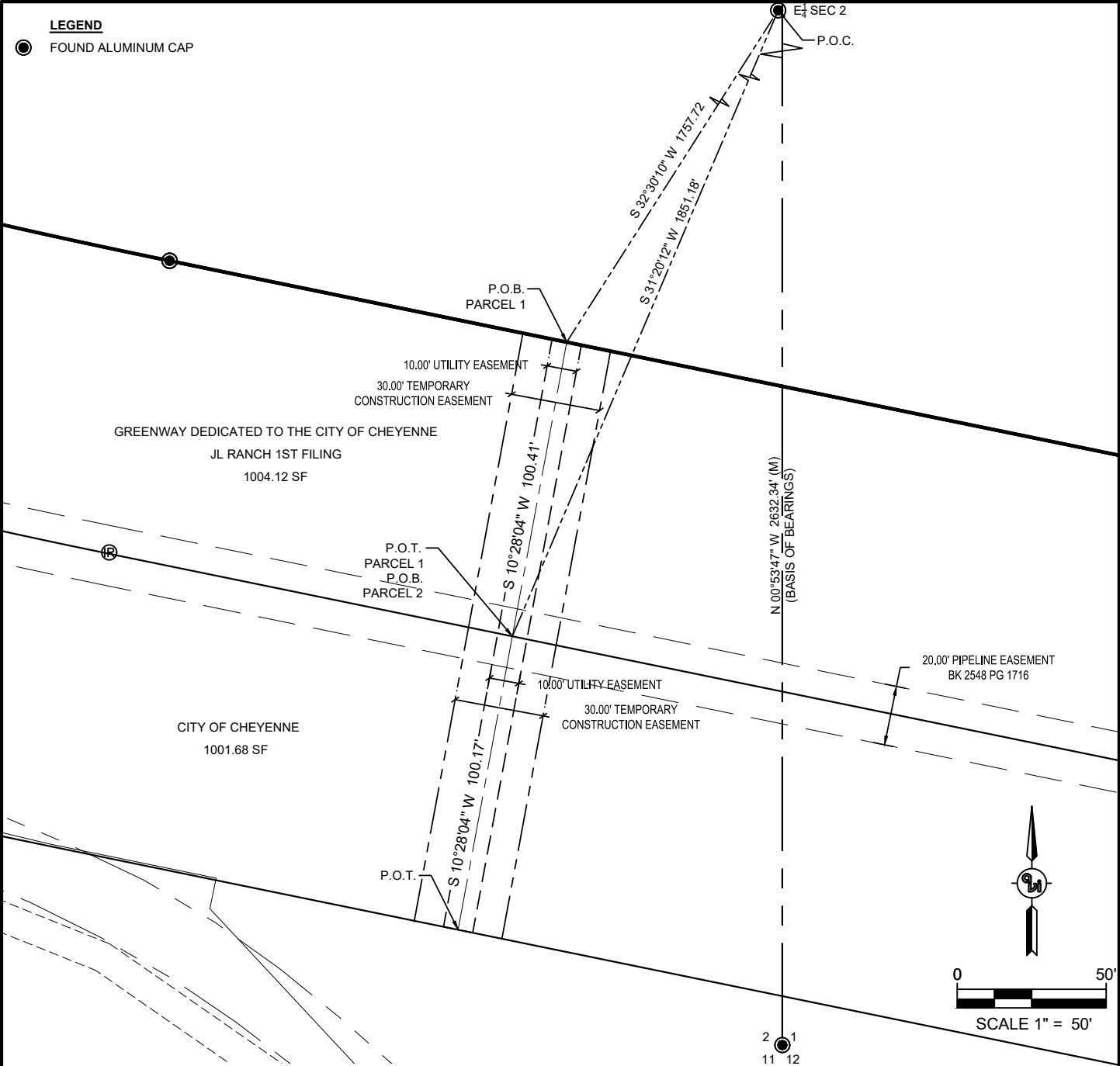
On this _____ day of _____, 2026, in and for the state and county aforesaid, before me, a Notary Public, personally came _____, who, upon oath, acknowledged that he/she is the authorized _____ of the MICROSOFT CORPORATION executed the foregoing instrument for the purposes therein contained, by signing his name as such officer and as the free and voluntary act and deed of said company.

WITNESS my hand and official seal in the state and county aforesaid, this _____ day of _____, 2026.

Notary Public, Laramie County, Wyoming

(SEAL)

My Commission Expires: _____



LEGAL DESCRIPTION

THE FOLLOWING ARE CENTERLINE DESCRIPTIONS FOR A FIBER LINE EASEMENT LOCATED IN A PORTION OF SECTION 2, TOWNSHIP 13 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN. THE SIDELINES OF THE PERMANENT EASEMENT LYING 5 FEET EACH SIDE AND THE TEMPORARY CONSTRUCTION EASEMENT LYING 15 FEET EACH SIDE OF THE FOLLOWING DESCRIBED CENTERLINES:

PARCEL 1:

COMMENCING AT THE EAST QUARTER CORNER OF SAID SECTION 2; THENCE S32°30'10"W A DISTANCE OF 1757.72 FEET TO A POINT ON THE SOUTH BOUNDARY OF BRONCO SUBDIVISION AND THE POINT OF BEGINNING.

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BASIS OF BEARINGS

CONSIDERING THE EAST LINE OF THE SOUTHEAST ONE-QUARTER OF SECTION 2, TOWNSHIP 13 NORTH, RANGE 66 WEST BEING MONUMENTED BY FOUND ALUMINUM CAPS AT THE SOUTHEAST AND NORTHEAST CORNERS A BEARING N00°53'47"W A DISTANCE OF 2632.34 FEET AND ALL BEARINGS AND DISTANCE BEING RELATIVE THERETO.

CHECKED BY:

AED

DATE PLOTTED:

Nov 18, 2025

JOB NO:

5030

DRAWN BY:

CRJ

EXHIBIT 'A'
10' UTILITY EASEMENT

SITUATED IN A PORTION OF SECTION 2
T13N, R66W OF THE 6th P.M.,
LARAMIE COUNTY, WYOMING
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